

Court No. - 3

Case :- WRIT - C No. - 32126 of 2021

Petitioner :- Smt. Nannhi Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Krishna Kant Vishwakarma, Ashwani Kumar

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"A. Issue a writ, order or direction in nature of certiorari quashing the impugned provisional/final assessment notices dated 20.11.2020 issued under Section 126 of Electricity Act, 2003 as well as demand notice dated 04.12.2020 issued under section 3 of U.P. Government Electrical undertaking (dues recovery), Act, 1958 (Annexure No. 1).

B. Issue a writ, order or direction in nature of mandamus commanding and directing to the respondent no. 3 to decide the representation dated 07.05.2021 filed by petitioner (Annexure No. 3)."

3. Shri Madan Mohan, learned counsel for the respondent nos. 2 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no. 3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 23.5.2022

A. V. Singh